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8

**Litigation Strategy**

- **Cause of Action:**

If you have received an order suspending a legal status (like an exemption certificate), you should immediately file an appeal under Section 127(1) within **30 days** of the service of the order. Ensure the grounds of appeal explicitly state how the suspension violates the Ordinance or principles of natural justice.

- **Evidence Requirements:**

- The original impugned suspension order.
- Proof of compliance with statutory notices (if any).
- Evidence of payment of the prescribed appeal fee (Section 127(4)).

- **Procedural Pathway:**

1. **Draft Appeal:** Prepare the appeal in the prescribed form under Rule 76 of Income Tax Rules, 2002.
2. **Payment of Fee:** Deposit the appeal fee (Rs. 1,000 for companies/assessments or specific amounts for others).
3. **Filing:** Lodge the appeal with the Commissioner (Appeals) office within the limitation period.
4. **Stay of Operation:** If the suspension causes immediate loss (e.g., stopping business imports), file a separate application for the suspension of the *operation* of the impugned order alongside the main appeal.

Relevant Laws ▾

Relevant Judgments >

Punjab Local Government Ordinance, 2001. They define the appellate authorities, outline the method for filing and hearing appeals, specify the process for decision-making, and provide for the transfer and disposal of pending appeals, excluding matters related to the service of Local Government employees.

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